



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing five judgments on Tuesday 18 September 2018 and 36 judgments and / or decisions on Thursday 20 September 2018.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 18 September 2018

[Frroku v. Albania \(application no. 47403/15\)](#)

The case concerns a former Member of Parliament's detention in the context of criminal proceedings against him.

The applicant, Mark Frroku, is an Albanian national who was born in 1972 and lives in Albania.

In 2015 Mr Frroku, a Member of Parliament at the time, had three sets of criminal proceedings brought against him. The charges included in particular false statements, premeditated murder and laundering the proceeds from a criminal offence.

Parliament authorised his arrest and detention in the context of the first and second set of proceedings and he was placed under house arrest from 26 March 2015. Because the police were not in a position to enforce the house arrest, on 2 April 2015, Parliament authorised his placement in detention in connection with the second and third set of proceedings, which had in the meantime been joined. In subsequent judicial proceedings, the Supreme Court validated the lawfulness of his detention, finding that there was a risk of flight and of his tampering with the collection of evidence.

Mr Frroku appealed to the Constitutional Court about his detention, alleging in particular that Parliament had not authorised his arrest in relation to the charges in the third set of criminal proceedings. However, his appeal was rejected in 2015. The Constitutional Court found that the Supreme Court had authorised his detention in response to all the criminal charges against him, including the charges in the third set of proceedings.

Mr Frroku made further challenges to his detention in 2015 and 2016, which were rejected.

Relying on Article 5 § 1 (right to liberty and security) of the European Convention on Human Rights, Mr Frroku complains that he was placed in detention in the third set of criminal proceedings against him without authorisation from Parliament.

[L.G. v. Belgium \(no. 38759/14\)](#)

The applicant, L.G., is an Italian national who was born in 1964 and lives in Brussels. The case concerns her alleged ill-treatment by the police in a police station.

In March 2008 L.G. went to a police station to file a complaint against her ex-boyfriend for assault and battery. One officer recorded her complaint and two others accompanied her to her ex-boyfriend's shop in order to reassure her. On their return to the police station there was a heated argument between L.G. and the officers, as L.G. was unsatisfied with the way her complaint had been handled and the police response. She claims to have been struck violently without good reason by four officers, apparently because of her refusal to leave the station. On the same day, between 3 p.m. and 7 p.m., she was placed in a cell for forceful resistance to a public officer. Around 9.30 p.m. she consulted a duty doctor who prescribed four days of sick leave, later extended by four additional

days. Four police officers were charged by the investigating judge to whom L.G.'s complaint against them was assigned. The judge ultimately found that there was no case to answer. L.G. appealed to the Court of Appeal and to the Court of Cassation but was unsuccessful.

Relying on Articles 3 (prohibition of inhuman or degrading treatment) and 6 (right to a fair hearing) of the European Convention, L.G. complains that she was struck violently by four police officers and that the investigation was ineffective.

[Lachiri v. Belgium \(no. 3413/09\)](#)

The applicant, Hagar Lachiri, is a Belgian national who was born in 1986 and lives in Koekelberg (Belgium). The case concerns her exclusion from a courtroom on account of her refusal to remove her *hijab*.

Mrs Lachiri, and other members of her family, applied to join the proceedings as civil parties seeking damages in a crime case during which her brother had been killed. In 2007 the accused was committed to stand trial before the Criminal Court on charges of premeditated assault and wounding resulting in unintentional death. Mrs Lachiri and the other civil parties appealed against that decision, submitting that the offence should be classified as murder and that the accused should be tried by an Assize Court. On the day of the hearing before the Indictments Division, in accordance with a decision of the presiding judge the court usher informed Mrs Lachiri that she could not enter the hearing room unless she removed her headscarf. Mrs Lachiri refused to comply and did not attend the hearing.

Relying on Article 9 (right to freedom of thought, conscience and religion), Mrs Lachiri complains that her exclusion from the courtroom infringed her freedom to express her religion.

[Kolobychko v. the Republic of Moldova, Russia, and Ukraine \(no. 36724/10\)](#)

The applicant, Ivan Kolobychko, is a Ukrainian national who was born in 1963 and lives in Tiraspol (Transnistrian region of the Republic of Moldova).

The case concerns the death of the applicant's son, Evgueni Kolobychko, while he was doing his compulsory military service. The events took place in an area that was under the exclusive control of the authorities of the "Moldavian Republic of Transnistria" ("MRT"), self-proclaimed as such.

In July 2007 the "MRT" army conscripted Mr Kolobychko's son into a military unit located in Tiraspol. Some two months later, Evgueni Kolobychko left the unit of his own accord and went to live with his cousin for one month. According to statements by his parents and cousin, Evgueni Kolobychko had numerous bruises on his body at that time, and he explained to them that soldiers had bullied and ill-treated him.

In October 2007 Evgueni Kolobychko was taken back to the barracks from which he fled again one week later. His decomposing body was found on the bank of the Dniestr in January 2008. The forensic medical report concluded that he had drowned. The "MRT" military prosecutor's office opened a criminal investigation but subsequently suspended it, as nobody who could be charged had been identified. Mr Kolobychko also filed a complaint for murder with the Moldovan authorities and the office of the Prosecutor General of the Russian Federation. The investigation opened by the Moldovan Prosecutor General was suspended for the same reason as the MRT investigation.

Relying on Articles 2 (right to life), 3 (prohibition of torture and inhuman or degrading treatment) and 13 (right to an effective remedy), Mr Kolobychko complains about the death of his son during his military service and about the investigation into the circumstances of the death.

[Stomatii v. the Republic of Moldova and Russia \(no. 69528/10\)](#)

The applicant, Svetlana Stomatii, is a Ukrainian national who was born in 1963 and lives in Vărnăcău (Transnistrian region of the Republic of Moldova).

The case concerns the death of the applicant's son, Alexander Stomatii, while he was on guard duty during his compulsory military service in the army of the "Moldavian Republic of Transnistria" ("MRT").

In May 2010 Alexander Stomatii was found lying on the ground, on his back, around 10 p.m., about five metres from the barracks. The forensic medical examiner concluded that he had died from a bullet wound to the head – the bullet probably having been fired from a Kalashnikov – and another bullet wound in the back. One month later the "MRT" military prosecutor informed Mrs Somatii that the investigation had revealed that her son's death had been the result of imprudent actions by conscript F., who had confessed. According to F., Alexander Somatii had been drunk while on guard duty and in the presence of other soldiers had pointed his weapon at his chin. F. had then tried to deflect the gun but accidentally pressed the trigger, thus causing the death of Alexander Somatii. Two to three minutes later, F. had decided to move the gun, which was on the ground, but in mishandling it he had fired another bullet which struck the victim in the back.

In March 2011, F., on trial for manslaughter, was found guilty of that charge and sentenced to two years' imprisonment. The sentence was upheld by the "MRT" Supreme Court in May 2011. F. was, however, discharged from serving it under an amnesty law.

The complaints filed by Mrs Somatii with the Moldovan and Russian authorities were unsuccessful. The Russian authorities did not reply and the Moldovans suspended the proceedings a number of times on the ground that nobody who could be charged had been identified.

Relying on Articles 2 (right to life) and 13 (right to an effective remedy), Mrs Somatii complains about her son's death and the investigation into the circumstances of his death.

Thursday 20 September 2018

[Gaspari v. Armenia \(no. 44769/08\)](#)

The applicant, Vartgez Gaspari, is an Armenian national who was born in 1957 and lives in Yerevan.

The case concerns his complaint about the conditions of and reasons for his detention for ten months in 2008.

Following protest rallies against the 2008 presidential election, there were clashes with the police and on 1 March 2008 Mr Gaspari was arrested on suspicion of assaulting a police officer. Shortly afterwards, he was formally charged and the courts allowed the investigator's application for his pre-trial detention. He lodged an appeal, arguing that he had a place of residence and a minor child and was known to be of good character. However, the Court of Appeal dismissed his appeal, concluding that he had misled the investigating authorities about his identity because his arrest record indicated his name as both Vartgez Gaspari and Vardges Gasparyan and that there were therefore grounds to believe that he might abscond or obstruct the course of justice. All his other requests to be released were dismissed.

Mr Gaspari was found guilty as charged and sentenced to one year's imprisonment in November 2008. He was released in February 2009.

Relying in particular on Article 3 (prohibition of inhuman or degrading treatment), he complains about the conditions of his detention between 6 March and 23 December 2008 when he was held in seven different cells in Nubarashen Remand Prison. He alleges that certain cells were overcrowded, lacked natural light and fresh air and were regularly flooded by sewage, that in others he had to take turns sleeping with fellow inmates and that he was constantly exposed to cigarette smoke.

Also relying on Article 5 § 3 (right to liberty and security / entitlement to trial within a reasonable time or to release pending trial), he alleges that the domestic courts failed to give good reasons for his detention. In particular, the Court of Appeal's decision about his identity distorted the facts; the

arrest record mentioned his Armenian name, Vardges Gasparyan, and, because he is an ethnic Armenian who was born and raised in Iran, the Iranian version of his name, Vartgez Gaspari.

[Gulyan v. Armenia \(no. 11244/12\)](#)

The applicant, Ashot Gulyan, is an Armenian national who was born in 1942 and lives in Yerevan.

The case concerns the death of his 30-year-old son, Levon Gulyan, when he was being questioned by the police as a witness in a murder case. He was found dead on 12 May 2007 in the courtyard of Yerevan police headquarters after having apparently fallen from a second floor window.

Levon Gulyan had been taken to the headquarters for questioning about a man who had been shot dead three days earlier in front of the restaurant he owned.

The investigation into the death was taken over by a special investigative service in December 2007 and, since then, has been repeatedly closed and resumed. Each time the investigators closed the proceedings, they essentially concluded that Mr Gulyan had been trying to escape a planned confrontation with another witness in the murder case because it would have obliged him to reveal the identity of the murderer. When ordering the reopening of the investigation, the courts pointed out numerous shortcomings, in particular the fact that the investigators had not looked into allegations that Mr Gulyan had been ill-treated and then thrown out of the window. The courts also gave repeated instructions to carry out a reconstitution of the events with a dummy. Most recently the investigation was closed again in February 2012, the decision stating among other things that there was no dummy available to carry out such a reconstitution.

Relying on Article 2 (right to life), Article 5 (right to liberty and security) and Article 13 (right to an effective remedy), the applicant complains in particular about the death of his son in police custody and the authorities' failure to carry out an effective investigation.

[Mushegh Saghatelyan v. Armenia \(no. 23086/08\)](#)

The applicant, Mushegh Saghatelyan, is an Armenian national who was born in 1950 and lives in Yerevan.

The case concerns his complaint of police ill-treatment and about his arrest and trial as part of an allegedly politically motivated crackdown on a wide-scale protest against the 2008 presidential elections.

Nationwide rallies, alleging election irregularities, broke out after the February 2008 presidential election. Protesters set up a camp in the centre of Yerevan, however, on 1 March in the early hours, the police broke it up. Along with other protesters, Mr Saghatelyan fled the camp and was taken into custody. Mr Saghatelyan, an active supporter of the opposition and a senior official for the former ruling party, alleges that the police beat him and other demonstrators. He was formally arrested later in the evening, then charged on 3 March with planning the violent overthrow of the Government and publicly insulting officials. On 4 March he was brought before a judge who ordered his detention for two months. His appeals against his detention were dismissed.

Five months later the charges against him were dropped, mostly for lack of evidence. New charges were, however, brought, accusing him of assaulting two police officers and illegally carrying a knife. He was convicted as charged in October 2008. The courts accepted the police's account that they had gone to the protest camp to carry out an inspection for weapons following intelligence they had received that demonstrators had been planning to instigate mass disorder. As concerned Mr Saghatelyan in particular, they relied on police testimony that he had attacked two police officers and illegally carried a knife. His appeal was dismissed in December 2008. He was sentenced to five years' imprisonment, of which he served half before being released in November 2010.

Mr Saghatelyan testified throughout the proceedings that the police had kicked, punched and hit him with rubber batons when he was apprehended and that the beating then continued at the police station. The authorities never officially investigated his complaints, considering that he must have been injured during the clashes.

Relying on Article 3 (prohibition of torture and of inhuman or degrading treatment), Mr Saghatelyan alleges that he was ill-treated by the police both during his apprehension and at the police station and that those responsible have never been identified and punished. Further relying on Article 5 §§ 1 (c), 2 and 3 (right to liberty and security), he alleges that his arrest was unlawful and arbitrary, that he was not informed promptly of the reasons for his arrest and that his arrest and continued detention were not based on a reasonable suspicion or properly justified. He also complains under Article 6 §§ 1 and 3 (d) (right to a fair trial and right to obtain attendance and examination of witnesses) that the criminal case against him was trumped up and based solely on contradictory police testimony, while he was not allowed to call any witnesses on his behalf and all his submissions in his defence were ignored. Lastly, he complains that the dispersal of the demonstration and his subsequent prosecution and conviction breached Article 10 (freedom of expression) and Article 11 (freedom of assembly and association).

[Aliyev v. Azerbaijan \(applications nos. 68762/14 and 71200/14\)](#)

The case concerns arrest and detention of a well-known human rights lawyer.

The applicant, Intigam Kamil oglu Aliyev, is an Azerbaijani national who was born in 1962 and who at the time of the events lived in Saray in the Absheron region of Azerbaijan.

Mr Aliyev has represented applicants before the Strasbourg Court. In August 2014 criminal proceedings were instituted against him on charges of illegal entrepreneurship, large-scale tax evasion and aggravated abuse of power. He was arrested and remanded in custody for three months. His appeals against being held in detention were all dismissed. Mr Aliyev's home and his association's office were also searched as a result of which various documents and objects were seized, with the courts rejecting his complaints that those measures were unlawful.

Relying on Article 2 (right to life) and Article 3 (prohibition of inhuman or degrading treatment), Mr Aliyev complains that he was not given adequate medical treatment in detention, and that his state of health was not compatible with detention. He also complains under Article 3 about the conditions of his detention and the conditions of his transport to court.

Mr Aliyev also raises a complaint under Article 5 §§ 1 and 3 (right to liberty and security/absence of a reasonable suspicion/lack of relevant and sufficient reasons for continued detention) and Article 5 § 4 (speedy decision on lawfulness of detention). He further complains about the search of his home and the association's office under Article 8 (right to respect for privacy and family life), while under Article 18 (limitation on use of restrictions on rights) he alleges that his rights were restricted for purposes other than those prescribed in the Convention. Lastly, he complains that his arrest and detention breached his right under Article 11 (freedom of assembly and association).

[Tuheiava v. France \(no. 25038/13\)](#)

The applicant, Richard Tuheiava, is a French national who was born in 1974 and lives in Arue (French Polynesia). A lawyer by profession, he served as senator from 21 September 2008 to 30 September 2014. He complains about a visit by the Chair of the Bar Council to his premises during his absence.

On 11 September 2008 the Papeete Bar Council decided to open disciplinary proceedings against Mr Tuheiava, in view of his law firm's extremely irregular accounts and numerous anomalies in his activity, which had led to a significant number of complaints from his clients. On 25 September 2009, Mr Tuheiava was referred to the disciplinary board. On 13 November 2009 he was debarred, by a decision of the Council, from legal practice for a period of two years, one of which was suspended.

The Council took the view that Mr Tuheiava had continually failed to fulfil his tax and social security obligations together with his civil obligations under his professional lease. It also found Mr Tuheiava guilty of serious negligence and misconduct in his relations with his clients, in addition to breaching the principles of confraternity and respect towards the Chair of the Bar Council and other members of the Bar.

Mr Tuheiava appealed on points of law, complaining in particular about the visit by the Chair of the Bar Council to his premises during his absence. The Court of Cassation dismissed his appeal and found that the Court of Appeal had rightly held that this measure, far from being reprehensible, had constituted, for the Chair of the Bar Council “a compelling duty” and that “the ethical investigation having been lawful, it could not have invalidated the disciplinary proceedings”.

Relying on Article 8 (right to respect for private and family life), the applicant argues that the visit by the Chair of the Bar Council to the premises of his law firm during his absence had breached his right to respect for his home. Relying on Article 6 § 1 (right to a fair hearing), he complains about the use, during the disciplinary proceedings, of observations made during that visit.

[Jishkariani v. Georgia \(no. 18925/09\)](#)

The applicant, Mariam Jishkariani, is a Georgian national who was born in 1965 and lives in Tbilisi. She is a psychiatrist and director of a non-governmental organisation working on the rehabilitation of victims of torture. In 2003 she created a rehabilitation project for inmates in a Tbilisi Prison. She also later became a member of a prison monitoring council set up by the Ministry of Justice.

The case concerns her complaint about defamation proceedings she brought against the then Minister of Justice. He had accused her of issuing incorrect medical reports so that healthy inmates could be placed in prison hospitals, in exchange for money.

The Minister made the statements on live television and as part of his interview to a newspaper in September 2005 amidst a debate on alleged corruption and mismanagement in the medical administration of the penal system.

Ms Jishkariani instituted civil-law defamation proceedings against the Minister. The courts accepted that no criminal investigation had ever been instigated against her and that the Minister’s accusation “may have contained erroneous facts”. However, the courts found against her, concluding that the Minister had been voicing his opinion on an important public discussion and that his statements had therefore fallen within the limits of acceptable criticism allowed under Article 10 of the European Convention. Furthermore, Ms Jishkariani had to accept that those limits were wider for her, because she was a public figure.

Relying on Article 8 (right to respect for private and family life), Ms Jishkariani complains that the domestic courts failed to protect her right to reputation against the Minister’s defamatory statements.

[Annen v. Germany \(no. 2 - 5\) \(nos. 3682/10, 3687/10, 9765/10 and 70693/11\)](#)

The four cases concern a series of complaints by an anti-abortion activist. The applicant, Klaus Günter Annen, is a German national who was born in 1951 and lives in Weinheim (Germany). The domestic courts have issued civil injunctions against Mr Annen, prohibiting particular aspects of his anti-abortion campaign.

In the first case Mr Annen was ordered to refrain from referring on his webpage to abortions performed by a doctor, Dr. Q., as “aggravated murder” and comparing them with the Holocaust.

The second case concerns an order against Mr Annen to desist from stating publicly that another doctor, Dr. S., had performed unlawful abortions in his medical practice, in front of which Mr Annen

had also distributed various leaflets. They contained statements such as “Near you: unlawful abortions ... and you are silent about the aggravated murder of our children?”.

In the third case the application for an injunction was lodged by a doctor, Dr St., because Mr Annen had approached passers-by and possible patients in the vicinity of Dr St.’s medical practice, while distributing leaflets. The leaflets also labelled the abortions performed by Dr. St. as unlawful and compared them with the Holocaust.

The fourth case deals with a civil injunction and an order to pay damages against Mr Annen because of statements which he made on another anti-abortion website. The website implied that abortions amounted to aggravated murder, compared doctors performing abortions to concentration camp commanders and in general equated abortions with the Holocaust. A link on the website directed readers to a list of doctors who performed abortions, mentioning, among others, Dr. F.

The complaints by Mr Annen against the injunctions in the cases were ultimately dismissed by the Federal Constitutional Court.

Relying on Article 10 (freedom of expression), Mr Annen complains that the injunctions interfered with his freedom of expression without being justified by the protection of the doctors’ personality rights. His website and leaflets contributed to a public debate and he had not personally accused the doctors of perpetrating aggravated murder; rather he had criticised the legal framework in Germany regarding abortions.

[Solska and Rybicka v. Poland \(nos. 30491/17 and 31083/17\)](#)

The applicants, Ewa Maria Solska and Małgorzata Ewa Rybicka, are two Polish nationals who were born in 1937 and 1955. Ms Solska lives in Sopot and Ms Rybicka in Gdańsk.

The case concerns their complaints about the exhumation of their husbands’ bodies without their consent.

Their husbands, Leszek Solski and Arkadiusz Rybicki, died in the plane crash in Russia (Smolensk) in 2010 which killed the members of a Polish State delegation who were on their way to attend a ceremony marking the 70th anniversary of the Katyń massacre. The delegation included the President of Poland and many high-ranking officials. Mr Solski was an activist of the Katyń Families Association and Mr Rybicki was a member of parliament. All 96 people on board died.

There were conflicting conclusions about the cause of the crash. The Polish and Russian aviation authorities concluded in 2011 that the crash had been an accident, caused by the plane descending too quickly below the minimum altitude in bad weather, while a Polish parliamentary group suggested that there might have been an explosion on board.

In 2016 the Polish prosecuting authorities, which had also opened an investigation in 2010, ordered autopsies on the bodies to determine if the victims’ injuries had been caused by impact with the ground or an explosion on board.

The applicants objected to the exhumations, writing letters to the Prosecutor General, lodging interlocutory appeals and seeking an injunction in the civil courts, all to no avail. The prosecutor refused to entertain the interlocutory appeals, finding them inadmissible in law. The civil courts dismissed the application for an injunction, finding that the prosecutor had a duty under the relevant domestic law to order an autopsy in every case of a suspicious death and, if the corpse had already been buried, to order its exhumation.

The remains of the applicants’ husbands were exhumed on 14 and 16 May 2018, respectively.

The applicants argue that the right to respect for the memory of their relatives falls under the notion of family life protected under Article 8 (right to respect for family life). They claim in particular that, in order to carry out the investigation, it was not necessary to exhume the bodies of all the victims.

They also deplore the fact that there was no real consultation with them about the exhumations or judicial review.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Caner v. Austria (no. 35841/16)

Mainstreet-Automaten GmbH and Others v. Austria (nos. 72662/14, 10037/15, 56653/15, and 54978/16)

Wöglér Bau Ges.m.b.H. and Steinert v. Austria (nos. 51626/15 and 57301/16)

M.D. v. France (no. 61401/12)

Burjanadze v. Georgia (no. 2155/09)

Andronache and Others v. Romania (nos. 3567/16, 4201/16, 7915/16, 16210/16, 17019/16, 17039/16, 17096/16, 19088/16, 19201/16, 19702/16, 20365/16, 21721/16, 22561/16, 26097/16, 26764/16, 29084/16, and 32363/16)

Banu and Others v. Romania (nos. 1262/16, 1415/16, 5545/16, 9617/16, 10344/16, 11194/16, 13019/16, 15238/16, 17434/16, 17860/16, and 18011/16)

Costilov v. Romania (no. 44505/16)

Hoxha v. Romania (no. 27390/15)

Lungu and Others v. Romania (nos. 41744/15, 2060/16, 5470/16, 7290/16, 9074/16, 12412/16, 16890/16, 17935/16, 26006/16, and 30682/16)

Manzuc v. Romania (no. 3402/17)

Nechifor v. Romania (no. 36655/16)

Ștefănescu and Others v. Romania (nos. 11408/16, 13684/16, 13775/16, 14281/16, 14569/16, 15619/16, 15667/16, 15704/16, 18910/16, 19026/16, 19942/16, and 19944/16)

Antipin and Others v. Russia (nos. 28590/11, 25511/16, 6485/17, and 15353/17)

Chernykh and Others v. Russia (nos. 32503/10, 52653/11, 54543/13, 60693/13, 68728/13, 78031/13, 80910/13, and 9699/14)

Grebenichenko and Polyakov v. Russia (nos. 40061/11 and 42331/11)

Ivanov and Others v. Russia (nos. 37673/16, 33881/17, 57095/17, 62400/17, 64477/17, 65679/17, and 66771/17)

Naumenko and Others v. Russia (nos. 25008/17, 69374/17, 71457/17, and 71698/17)

Panov and Others v. Russia (nos. 42898/17, 64134/17, 67924/17, 68854/17, 69411/17, 71196/17, 73176/17, 74197/17, and 81596/17)

Vasilyeva and Others v. Russia (nos. 65223/13, 66645/13, 68493/13, and 69531/14)

Vidyakov and Others v. Russia (nos. 15244/17, 67616/17, 68676/17, and 70940/17)

Tsarev and Others v. Russia (nos. 21431/06, 7055/08, 13117/08, 16851/08, and 23216/08)

Yelisseyev and Knyazkin v. Russia (nos. 27414/17 and 51559/17)

Batalla v. Sweden (no. 20217/13)

Shcherbakov v. Ukraine (no. 39708/13)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.